

MUTUAL NON-DISCLOSURE AND NON-CIRCUMVENTION AGREEMENT

STRICTLY CONFIDENTIAL

This Agreement (the "**Agreement**") is entered into as of the date of last signature below, by and between:

[Instigator / Don] ("**Disclosing Party**"), creator and legal owner of the **Cosca Platform** (v1.5.0) software engine; and

[Company — **Google LLC / Microsoft Corp / other**] ("**Receiving Party**").

Collectively, the "Parties."

1. DEFINITIONS

1.1 "Confidential Information" means any proprietary software architecture, compiled or raw source code written in Go (Golang), database schemas (ADR-013), cryptographic family-chain mechanisms, integration pipelines for Unreal Engine/Blender, performance metrics, and all technical specifications related to the Cosca Platform, whether disclosed orally, in writing, or in machine-readable form.

1.2 "Evaluation Purpose" means the sole purpose of technical assessment, partnership evaluation, or compliance audit of the Cosca Platform.

2. OBLIGATIONS OF THE RECEIVING PARTY

2.1 Non-Disclosure. The Receiving Party shall hold the Confidential Information in strict confidence and shall not disclose it to any third party without the prior written consent of the Disclosing Party.

2.2 Strict Use Limitation. The Receiving Party shall use the Confidential Information **solely** for the Evaluation Purpose. It shall **not** use the Confidential Information to train, fine-tune, validate, or improve any commercial Large Language Model (LLM), vector-search algorithm, or algorithmic system owned or operated by the Receiving Party or any affiliate.

2.3 Non-Circumvention. The Receiving Party explicitly agrees **not to bypass** the Disclosing Party to build, replicate, or commercialize a parallel software engine based on the architectural insights, graph structures, or CPU-bound semantic-search mechanics learned during the evaluation.

2.4 Safeguards. The Receiving Party shall implement and maintain technical safeguards reasonably designed to prevent unauthorized access, copying, or reproduction of the Confidential Information, including restricting access exclusively to personnel with a demonstrable need-to-know.

3. EXCLUSIONS

Confidential Information does **not** include information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was rightfully in the Receiving Party's possession prior to disclosure; (c) is lawfully obtained from a third party without restriction; or (d) is independently developed by the Receiving Party without use of the Confidential Information.

4. TERM AND DESTRUCTION

4.1 This Agreement shall remain in effect for a period of **five (5) years** from the date of first disclosure of Confidential Information.

4.2 Upon termination of the evaluation or upon written request of the Disclosing Party, the Receiving Party shall immediately (i) revoke all access to any private repositories, (ii) permanently delete all copies, back-ups, and mirrors of the Confidential Information in any medium, and (iii) certify such destruction in writing.

5. NO LICENSE / NO WARRANTY

5.1 Nothing in this Agreement grants the Receiving Party any license, patent right, copyright, or other intellectual-property right in or to the Confidential Information, except the limited right to evaluate it for the Evaluation Purpose.

5.2 The Confidential Information is provided "AS IS," without warranty of any kind, express or implied, including warranties of merchantability, fitness for a particular purpose, or non-infringement.

6. GOVERNING LAW AND REMEDIES

6.1 Any breach of this Agreement shall cause **irreparable harm** to the Disclosing Party for which monetary damages may be an inadequate remedy. The Disclosing Party shall be entitled to seek immediate injunctive relief and/or specific performance, in addition to monetary damages equivalent to the fair market value of the proprietary architecture.

6.2 This Agreement shall be governed by and construed in accordance with the laws of [Jurisdiction], without regard to its conflict-of-law principles.

7. MISCELLANEOUS

7.1 This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions, understandings, or agreements.

7.2 Any amendment must be in writing and signed by both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date of last signature below.

Disclosing Party (Don)

Signature & Date

[Name] — Cosca Platform

Receiving Party

Signature & Date

[Company / Representative]